

HOUSE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Priscila S. Sousa

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act enhancing fire safety in communities hosting residential state colleges and universities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Priscila S. Sousa</i>	<i>6th Middlesex</i>	<i>4/3/2026</i>
<i>Dennis C. Gallagher</i>	<i>8th Plymouth</i>	<i>4/15/2026</i>

HOUSE No.

By Representative Sousa of Framingham, a petition (subject to Joint Rule 12) of Priscila S. Sousa relative to fire safety in communities hosting residential state colleges and universities. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act enhancing fire safety in communities hosting residential state colleges and universities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Purpose.

2 The purpose of this Act is to ensure that cities and towns hosting a public college or
3 university that provides on-campus residential housing within the Commonwealth have adequate
4 fire department staffing to meet nationally recognized industry standards. The recent fire in
5 Amherst, Massachusetts, in proximity to large student residential populations, demonstrates the
6 increased demand placed on local fire departments. Similar deficiencies in other communities
7 have resulted in preventable tragedies, including the fatal fire in Fall River where vulnerable
8 residents were not provided adequate fire protection. This Act is intended to prevent future loss
9 of life by ensuring host communities with residential student populations are properly staffed and
10 supported.

11 SECTION 2. Definitions.

12 For the purposes of this Act:

(a) “Host community” shall mean any city or town in the Commonwealth that contains a campus of a public college or university that owns, operates, or controls on-campus student dormitories or other residential housing facilities.

(b) “Residential public institution of higher education” shall mean a public college or university within the Commonwealth that provides on-campus housing for enrolled students, including but not limited to the University of Massachusetts system and state universities.

(c) “Industry standards” shall mean the staffing and response requirements set forth in National Fire Protection Association (NFPA) Standard 1710 or any successor standard.

(d) “Eligible fire staffing costs” shall mean salaries, overtime, training, and benefits necessary to achieve compliance with industry standards.

SECTION 3. Fire Department Staffing Requirements.

(a) The Commonwealth shall ensure that fire departments in host communities have sufficient personnel to meet industry standards for alarm response related to residential public institutions of higher education, including deployment of a minimum of four firefighters on all engine companies and response times consistent with NFPA 1710.

(b) Each host community shall annually certify its staffing needs to the Executive Office of Public Safety and Security (EOPSS) based on student residential population, call volume associated with campus housing, residential density, and other relevant risk factors.

(c) Municipalities hosting public colleges or universities that do not provide on-campus residential housing shall not be subject to the requirements of this section.

SECTION 4. State Reimbursement to Host Communities.

(a) The Commonwealth shall reimburse host communities for eligible fire staffing costs necessary to reach and maintain compliance with industry standards related to residential public institutions of higher education.

(b) Reimbursement shall be funded through an annual transfer from the operating budgets of the residential public colleges or universities located in those communities.

(c) Each residential public institution of higher education shall allocate a proportionate share of its budget to a dedicated “Host Community Fire Safety Fund,” administered by EOPSS, for the purpose of reimbursing municipalities.

(d) The provision of public safety services is a responsibility of the Commonwealth. An institution may increase tuition or mandatory student fees to offset costs related to this section only on a limited and temporary basis; provided, however, that any such increase shall be minimal, defined as not exceeding one-half of one percent (0.5%) annually, shall be capped for a period not to exceed four academic years, and shall apply only to entering freshman cohorts. The tuition and mandatory student fees assessed to an entering freshman shall remain fixed and unchanged for the duration of that student’s four-year course of study and shall not be increased thereafter for purposes of this section.

SECTION 5. Administration.

(a) EOPSS shall develop a simple annual reporting and reimbursement process for host communities.

(b) Funds shall be distributed no later than September 1 of each year.

(c) EOPSS shall submit an annual report to the Joint Committee on Public Safety and Homeland Security summarizing reimbursements and compliance levels statewide.

SECTION 6. Legislative Intent.

It is the intent of the Legislature that no community hosting a residential state college or university be left with inadequate fire protection due to increased population, high-density student housing, or call volume driven by campus residential activity. Institutions that do not house students on campus do not present the same residential fire risk and are therefore excluded from the requirements of this Act. The Amherst fire serves as a clear warning that staffing shortfalls in residential campus communities produce unacceptable risks to students and residents alike. This Act ensures that the Commonwealth, as the operator of residential higher education facilities, bears its fair share of responsibility for public safety.

SECTION 7. Effective Date.

This Act shall take effect July 1 following its passage.